

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

VERTERRA LTD., *Complainant*

v.

D.B. GROUP AMERICA LTD. AND D.B. GROUP INDIA LTD.,
Respondents.

DOCKET NO. 19-09

Served: April 2, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

SCHEDULING ORDER

On March 31, 2020, the parties filed a joint status report with proposed schedule as required by the initial order and order denying motion to dismiss or stay proceeding. The schedule proposed by the parties is reasonable and will be adopted.

The schedule below includes the briefing schedule to ensure the parties proceed in an efficient manner. The parties shall schedule time to complete all depositions, supplemental discovery, and to have discovery motions resolved prior to the discovery cut-off date. Parties shall be prepared to proceed without any further discovery after the discovery cut-off date.

All requests for extensions will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interests of both parties to proceed expeditiously.

April 22, 2020	Serve written discovery.
June 1, 2020	Respond to written discovery.
July 1, 2020	Identify and exchange expert reports.
July 6, 2020	All depositions completed.
August 1, 2020	Rebuttal expert reports exchanged.
August 13, 2020	All discovery completed.
September 10, 2020	Complainant files brief, proposed findings of fact, and appendix.

October 8, 2020	Respondents file opposition brief, proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.
October 22, 2020	Complainant files reply brief and responses to Respondents' proposed findings of fact.

To ensure timely progress, the parties will be required to file joint status reports on the first day of every month, beginning on May 1, 2020. Joint status reports should be attached to an email addressed to secretary@fmc.gov and clearly copied to opposing counsel and judges@fmc.gov.

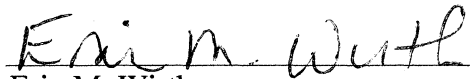
The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
- a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder or spiral bound;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.
5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service. The parties should follow guidance provided by the Office of the Secretary regarding changes to filing requirements.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge